

25STLC04848 25STLC04848

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STLC04848 Hearing Date: September 16, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

16, 2026 TRIAL DATE: Not set

CASE: Dorothy

Caronna v. Déjà Vu Services, Inc.

CASE NO.: 25STLC04848

DEFENDANT

DEJA VU SERVICES, INC.'S MOTION FOR SANCTIONS

PURSUANT

TO C.C.P. § 128.5(g)

MOTION

FOR LEAVE TO AMEND

Plaintiff Dorothy

Caronna ("Plaintiff") performed as a dancer at the Déjà Vu Showgirls at 7350 Coldwater Canyon Ave in North Hollywood. Plaintiff alleges that she was forced to engage in lap dances with violent customers under threat of termination and suffered sexual battery throughout her employment. Plaintiff also alleges that defendant Déjà Vu Services, Inc. ("Defendant") stole her wages.

Before the

court are two motions: (1) Defendant's motion for sanctions pursuant to Code of Civil Procedure section 128.5(g), and (2) Plaintiff's motion for leave to amend. The court addresses these motions in turn.

I. DISCUSSION

RE MOTION FOR SANCTIONS

On October 14, 2025, Plaintiff filed the operative Second Amended Judicial Council Form Complaint ("SAC") against Defendant for (1) general negligence; (2) sexual battery; (3) intentional infliction of emotional distress; and (4) fraud.

On January 6, 2026, Defendant filed a demurrer and motion to strike portions of the SAC.

On May 12, 2026, the court sustained in part the demurrer without leave to amend.

On June 12, 2026, Plaintiff filed a motion for sanctions for Defendant's purported failure to discover its demurrer had been rejected by the clerk and which caused a delay in the proceedings.

On August 12, 2026, the court denied Plaintiff's motion for sanctions.

Defendant's Motion for Sanctions

On July 10, 2026, Defendant filed this motion for sanctions for Plaintiff's failure to withdraw her June 12, 2026 motion for sanctions.

On July 27, 2026, Plaintiff filed an opposition.

On September 9, 2026, Defendant filed a reply.

B. Analysis

Defendant seeks sanctions against Plaintiff for her refusal to withdraw her June 12, 2026 sanctions motion. Plaintiff's sanctions motion sought \$100,000 for (what Plaintiff now characterizes as) Defendant's negligent conduct in failing to discover the rejection of Defendant's demurrer filing. As a result, Defendant argues it incurred expenses in filing an opposition to Plaintiff's sanctions motion and appearing at the hearing.

Code of Civil Procedure section 128.5, subdivision (a) provides, "A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." Section 128.5 further provides, "If the alleged action or tactic is the making or opposing of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading that can be withdrawn or appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected." (Code Civ. Proc., § 128.5, subd. (f)(1)(B).)

Here, the court finds that Defendant's motion for sanctions is meritorious. As discussed in the court's September court found Plaintiff's sanctions motion to be procedurally and substantively defective. (See Minute Order, 08/12/26.) Stated another way, Plaintiff's motion was frivolous. Indeed, the relief requested therein (sanctions for \$100,000) was simply not tailored to address the alleged conduct (Defendant's alleged delay tactic by not discovering the rejection of its demurrer to the SAC). Plaintiff does not raise any arguments to support a contrary finding. Instead, Plaintiff mainly rehashes arguments she raised in connection to her sanctions motion. Given the foregoing, and Defendant's satisfaction of the 21-day safe harbor provision (see Critchlow Decl. ¶ 19, Exs. O, P), the court finds sanctions against Plaintiff are warranted.

C. Conclusion

Defendant's motion for sanctions is GRANTED. Plaintiff is ordered to pay sanctions in the reduced sum of \$900 within 45 days of this order.

II. DISCUSSION

RE MOTION FOR LEAVE TO AMEND

A. Background

On July 30, 2026, Plaintiff filed a motion for leave to amend the prayer for relief in her complaint. Plaintiff seeks leave to request \$250,000,000 for emotional distress, pain and suffering, \$250,000,000 in punitive damages, and \$100,000 for fraud damages.

On September 2, 2026, Defendant filed an opposition.

On September 4, 2026, Plaintiff filed a reply.

B. Analysis

After reviewing the moving papers, opposition, and reply, the court will deny Plaintiff's motion without prejudice. A plaintiff cannot state the amount demanded for a claim of punitive or emotional damages. (See Code Civ. Proc., § 425.10(b); see also *Austin v. Regents of Univ. of California* (1979) 89 Cal.App.3d 354, 359 ["Plaintiff sought leave to amend his pleading to allege damages in addition to those originally pleaded resulting from his alleged distress. Denial of that request was proper. Under subdivision (b) of section 425.10 of the Code of Civil Procedure, no dollar amount of damages may be stated in an action for personal injuries."].) Accordingly, Plaintiff cannot state in the complaint a specific amount sought for emotional distress damages or punitive damages.

However, as to Plaintiff's request to add \$100,000 for fraud damages, leave is warranted. Code of Civil Procedure section 425.10(a) requires that "[i]f the recovery of money or damages is demanded, the amount

demanded shall be stated.”

C. Conclusion

The motion

for leave to amend is GRANTED IN PART, DENIED IN PART. Within 10 court days of this order, Plaintiff is ordered to serve and filed a Third Amended Complaint which specifies the damages sought for her fraud claim, omits the amount demands on her claims for emotional distress damages and punitive damages, and omits the sexual battery claim.

III. DISPOSITIONS

1. Defendant’s motion for sanctions is Granted. Plaintiff is ordered to pay sanctions in the reduced sum of \$900 within 45 days of this order.

2. Plaintiff’s motion for leave to amend is Granted

In Part, Denied In Part. Within 10 court days of this order, Plaintiff is ordered to serve and filed a Third Amended Complaint which specifies the damages sought for her fraud claim, omits the amount demands on her claims for emotional distress damages and punitive damages, and omits the sexual battery claim.

Moving parties are ordered to give notice, unless waived.

Dated: September 16,
2026

Brock T. Hammond

Judge of the
Superior Court